REPORTABLE (39)

MING CHANG SINO AFRICA MINING INVESTMENTS (PRIVATE) LIMITED
v
(1) HUI ZHANG (2) WANG XIAOMING (3) C.T. KADENGA N.O.

SUPREME COURT OF ZIMBABWE
MAVANGIRA JA, BHUNU JA & MUSAKWA JA
HARARE: 15 & 16 SEPTEMBER 2025 & 29 JUNE 2026

G .R. J Sithole, for the appellant

J. Runganga, for the first and second respondents

No appearance for the third respondent

BHUNU JA:

INTRODUCTION

1. The appellant brings an appeal against the whole judgment of the High Court (the court *a quo*) under judgment number HH 125/25, dated 13 December 2024. This appeal raises an important jurisdictional question in Zimbabwean labour jurisprudence. The appeal seeks, among other things, an answer from this Court on the much vexed question as to whether the Labour Court has the exclusive jurisdiction to issue declaratory orders.

2. The question has generated divergent views from the superior courts of the land. In the past, superior courts generally adopted the position that the Labour Court lacked jurisdiction to grant declaratory orders thereby leaving litigants with no relief in the Labour Court and related tribunals in respect of declaratory orders. Consequently, litigants had no option but to approach the High Court for declaratory relief in terms of s 14 of the High Court Act [*Chapter 7:06*]. However, recent jurisprudence has decisively shifted from that

position in favour of granting the Labour Court the necessary exclusive jurisdiction to issue declaratory orders within its domain under s 89 of the Labour Act [*Chapter 28:01*].

BRIEF BACKGROUND FACTS

3. The appellant is a company and former employer of the first and second respondents. The first respondent was employed as projects manager whereas the second respondent doubled up as cashier and interpreter. The third respondent is the Labour Officer who presided over the other parties' disputes of unfair dismissal.

4. After hearing evidence and arguments, the third respondent found that the first and second respondents had been unlawfully dismissed. She therefore made a draft ruling that the appellant was obliged to pay to the respondents the sums of US$18 000.00 and US$40 000.00 respectively or their equivalent in local currency. She then took the draft ruling to the Labour Court for confirmation.

5. The Labour Court, after hearing evidence and deliberating over the application, issued a slightly different order authorizing the appellant to pay the amount of damages due to the respondents in local currency at the prevailing bank rate as at the date of payment. The order reads:

> "1. The application for confirmation of the draft ruling be and is hereby granted.
>
> 2. The Draft Ruling of C.T. Kudenga N. O. dated 23 December 2021 be and is hereby confirmed as follows:
>
> (a) The dismissal of first and second respondents be and is hereby declared to be unlawful.
> (b) Third respondent (appellant) be and is hereby ordered to pay to first respondent the sum of USD18 000.00 at the official prevailing rate of exchange on the date of payment.
> (c) Third respondent be and is hereby ordered to pay second respondent the sum of USD40 000.00 at the official prevailing rate of exchange obtaining at the date of payment.
> (d) The sums of money referred to in (b) and (c) above, shall be with effect from thirty (30) days of the date of this order.

(3) Each party to meet its own costs."

6. The appellant did not comply with the Labour Court's order prompting the first and second respondents to approach the court *a quo* for registration of the court order for enforcement purposes. The appellant opposed the application for registration on various grounds, chief among them, that the Labour Court had granted a declaratory order without jurisdiction to do so.

THE PARTIES' RESPECTIVE ARGUMENTS IN THE COURT *A QUO*

7. In opposing the application for registration of the Labour Court's orders, the appellant argued, as it does before this Court, that the Labour Court judgment offended Zimbabwean public policy in that it compelled the appellant to pay money it did not owe to the first and second respondents. This was because the third respondent acted outside her mandate and the Labour Court proceeded to confirm the draft ruling without jurisdiction to do so.

8. The respondents countered that the appellant's opposition to the registration of the Labour Court order was frivolous and vexatious calculated to delay execution. They argued that the Labour Court had the necessary jurisdiction to issue declaratory orders In terms of s 89 of the Act as it did.

DETERMINATION BY THE COURT *A QUO*

9. After hearing both parties, the court *a quo* found that the Labour Court judgment was a lawful and extant judgment. It also found that the appellant had not sought the setting aside of the judgment on the basis that it offended the public policy of Zimbabwe as the Labour Court had acted without jurisdiction.

10. The court *a quo* further found that the appellant had not provided any evidence as to how Zimbabwe's public policy would be offended if the court *a quo* executed the Labour Court orders.

11. As regards the challenge to the jurisdiction of the Labour Court, the court *a quo* held that the Act conferred the necessary jurisdiction on the court to issue declaratory orders. It distinguished the case of *Air Zimbabwe* v *Mateko & Ors* SC 180/20 on the basis that the case did not deal with the issue of declaratory orders as postulated in this case. The court *a quo* proceeded to register the disputed orders on the basis of such findings of fact and law. It accordingly issued the following order:-

> "1. The Labour Court Judgment dated on 6 May 2022, per MURASI J be and is hereby registered as an order of this Court.
>
> 2. First respondent be and is hereby ordered to pay to first applicant the sum of USD18 000.00 at the official prevailing rate of exchange on the date of payment.
>
> 3. First respondent be and is hereby ordered to pay to the second applicant the sum of USD40 000.00 or its equivalent in local currency at the official prevailing rate of exchange obtaining on the date of payment.
>
> 4. The sums of money in paras (2) and (3) shall be paid within 30 days of the date of service of this order to first respondent. The first respondent shall pay costs of the application."

GROUNDS OF APPEAL

12. Dismayed by the court *a quo's* order, the appellant launched this appeal to the Supreme Court on the following grounds:

> "1. The Court *a quo* erred at law and grossly misdirected itself when it registered an invalid declaratory order granted by the Labour Court in doing so the court *a quo* was lost to the clear legal position that the labour court lacks the power to grant declaratory relief.

2. *A fortiori*, the court *a quo* misdirected itself by proceeding to register a null and void order of the Labour Court, which order was contrary to public policy in that the order did not provide for the primary remedy of reinstatement, pursuant to a "declaration" of unlawful termination of employment contract."

THE RELIEF SOUGHT

13. If successful, the appellant seeks the following relief:

"1. The instant appeal succeeds with costs.

2. The judgment of the court *a quo* be set aside and substituted with the following:

'The application is dismissed with costs on an attorney client scale.'"

ISSUES FOR DETERMINATION

14. The two grounds of appeal effectively raise one cardinal issue for determination as to whether or not the Labour Court has the jurisdiction to issue declaratory orders. Once that issue is resolved the issue of public policy is automatically resolved in the process.

INITIAL CONCESSION ON THE QUESTION OF JURISDICTION

15. Initially both counsel were agreed that the Labour Court has no jurisdiction to issue declaratory orders given the precedents coming from the superior courts. The court then drew counsels' attention to the fact that there have been conflicting judgments emanating from the same superior courts.

16. In response to the court's query, both parties sought leave to file supplementary heads of argument on the question of the Labour Court's jurisdiction over declaratory orders. The Court graciously granted the request. When the hearing of the appeal recommenced, counsel for the respondent abandoned his initial concession that the Labour Court has no jurisdiction to issue declaratory orders. No issues arise from his change of heart as a party

is not bound by concessions on what the real position of the law is. This is for the simple but good reason, that the true position of the law is constant and remains the same at any given time regardless of any deportment or concessions made by counsel to the contrary.

THE APPELLANT'S SUBMISSIONS ON APPEAL

17. The appellant's argument is anchored on the premise that the Labour Court is a creature of statute. As such it has no jurisdiction outside the bounds of s 89 of the enabling statute, the Labour Act. It contends that nowhere in that section is the Labour Court given the power to grant declaratory orders. For that proposition of law counsel for the appellant stood on the authority of *Nyahora* v *CFI Holdings (Pvt) Ltd* 2014 (2) ZLR 2014. He fortified his argument by the decision in *Chingombe* v *City of Harare* SC 177/20 where this Court stated that:

> "It is a settled position in our law that, as a creature of statute, the Labour Court has not been imbued with the power to issue declaratory orders."

18. I hasten to note in passing that the above observation was quoted out of context by counsel. In fact the *ratio* for the decision in that case was that both the Labour Court and Labour Officers have jurisdiction to issue declaratory orders in purely labour related matters. On the contrary, it is the High Court which lacks the jurisdiction to issue declaratory orders in labour matters. This is what the Supreme Court had to say at para 40 of the *Chingombe* judgment, *supra*:

> "That being the position, the High Court had no jurisdiction to issue a declaratur in respect of issues of labour and employment. Section 2A of the Labour Act Makes it clear that notwithstanding the powers of the High court to issue declaraturs, the Labour Act prevails over all other laws inconsistent with it… The High Court was wrong in assuming jurisdiction in a matter where the issues for determination involved the resolution of an employment dispute. It should have declined jurisdiction."

19. Mr *Sithole* counsel for the appellant, nevertheless juxtaposed the Labour Court's jurisdiction on declaratory orders against that of the High Court. The High Court is expressly given the jurisdiction to issue declaratory orders under s 14 of the High Court Act, *Chapter [7:06*]. In developing his argument he submitted that in any case, the High Court has the common law inherent jurisdiction to do anything which is not proscribed by law. He buttressed his submission in this respect by citing the leading cases on this aspect of the law comprising, *Blue Rangers Estates (Pvt) Ltd* v *Muduvuri & Anor* 2009 (1) ZLR 376 (S) and *Guwa & Anor* v *Willoughby's Investments (Pvt) Ltd* 2009 (1) ZLR 368 (S) at 383 D- E.

20. Counsel for the appellant further submitted that the Labour Court erred and misdirected itself in confirming a draft order made by the Labour Officer who had no jurisdiction to grant declaratory relief. It was his submission that nowhere in s 93 of the Act is a Labour Officer given the jurisdiction to grant declaratory relief. Counsel relied heavily on the case of *Isoquant Investments (Pvt) Ltd* 2020 (1) ZLR 1268 (CC). That case gives an extensive description of the functions of a labour officer. Issuing declaratory orders is not one of the powers attributed to the Labour officer, so goes the argument. Reliance was also placed on the case of *UZ-UCSF Collaborative Research Programme in Women's Health* v *Shamuyarira* 2010 (1) ZLR 127 (S) at 130 C-E where ZIYAMBI JA observed that:

> "… Nowhere in the Act is the power granted to the Labour Court to grant an order of the nature (of the declaratory order) sought by the respondents in the court *a quo*, nor have I been referred to any enactment. So, too, in this case, there is no provision in the Act nor have I been referred to any provision in any other enactment authorizing the Labour Court to issue the declaratory order sought by the respondent. It is therefore my view that the Labour Court ought to have dismissed the application for want of jurisdiction authorizing the Labour Court to grant such an order."

21. He thus submitted that the order of the Labour court was a nullity incapable of registration for want of jurisdiction. He buttressed his contention in this respect on the strength of

the dictum in *Matanhire* v *BP Shell Marketing Services (Pvt) Ltd* 2004 (2) ZLR 147 (S) where the court said:

> "If the order was void *ab initio*, it was void at all times and for all purposes. It does not matter when and by whom the issue of its validity is raised, nothing can depend on it."

22. That argument is founded on the famous case of *Mcfoy* v *United Africa Co Ltd* [1961] 3 All ER 1169 at 11721 where Lord Denning had the occasion to remark that:

> "If an act is void, then it is in law a nullity. It is not only bad, but incurably bad… And every proceeding which is founded on it is also bad and incurably bad. You cannot put something on nothing and expect it to stay there. It will collapse."

23. Citing a plethora of cases in this jurisdiction, Mr *Sithole* was at pains to persuade the court to rule in his client's favour on the basis that the cited cases consistently ruled that the Labour Court has no jurisdiction to issue declaratory orders. These include, *Air Zimbabwe Airways* v *Mateko & others* SC 180/20, *Panyiwa* v *Shamva Gold Mine* 97/24. *National Railways of Zimbabwe* v *Zimbabwe railways Artisans Union & Others* SC 8/24, *Dombodvuku* v *CMED (Pvt) Ltd* SC 31/12. *Nyahora* v *CFI Holdings (Pvt) Ltd* 81/14 and *Stylianou & Ors* v *Mubita & 25 Ors* SC 7/17.

24. In conclusion he submitted that the court *a quo* misdirected itself and erred at law when it registered an order birthed from an abortive process. At law a labour officer does not have the jurisdiction to grant declaratory relief. He thus submitted that the ruling of the third respondent was null and void *ab initio.* He further contended that the Labour Court compounded the error by confirming a ruling made by a tribunal without jurisdiction to issue declaratory orders. The court *a quo* aggravated the error by registering a nullity. He thus prayed for the relief sought in para 13 of this judgment.

THE FIRST AND SECOND RESPONDENTS' SUBMISSIONS ON APPEAL

25. In his revised *viva voce* submissions and written supplementary heads of argument, counsel for the first and second respondents abandoned his initial stance and concession that the Labour Court has no jurisdiction to issue declaratory orders. Having perused relevant case law, he was now of the firm view that the Labour Court has the necessary jurisdiction to issue declaratory orders.

26. He based his response on the premise that the advent of the Labour Court and related tribunals had the effect of stripping the High Court of its inherent jurisdiction to hear and determine labour disputes in the first instance. That function has now been reposed in the Labour Court in terms of s 89 (6) which expressly excludes the jurisdiction of the High court and other courts in labour matters with the exception of the Labour Court and related tribunals. For that proposition of law he relied heavily on the case of *Stanley Nhari* v *Robert Gabriel Mugabe & 2 Ors* SC 161/20. In holding that the High Court has no jurisdiction to hear and determine issues of labour disputes in relation to unfair dismissals, this Court per GARWE JA , as he then was, had this to say:

> "The same Constitution that conferred original jurisdiction on the High Court over all civil and criminal matters also made provision for the creation of other specialised courts, whose jurisdiction over specialised areas of the law and the exercise of such jurisdiction was left entirely to Acts of Parliament. In other words, it is the Constitution itself which has permitted the establishment of these specialised courts and, in the same breath, provided for the issue of jurisdiction and exercise of such jurisdiction to be left to an Act of Parliament. Section 172 of the Constitution, which establishes the Labour Court is not made subject to s 171 which creates the High Court. The two sections are in *pari materia* and must therefore be construed together. In making provision for the establishment of specialised courts in Acts of Parliament, the Constitution has not in any way attempted to fetter or restrict the jurisdiction that is to be conferred upon such courts, or to make such jurisdiction subject to s 171, which creates and provides for the jurisdiction of the High Court."

27. The import of that observation is that it is a fallacy that the High Court is a court of unlimited jurisdiction. This is because its jurisdiction is limited by statutes which create

other specialized courts like the Labour Court which has the effect of limiting its jurisdiction in specified areas of specialization.

28. Counsel further submitted that the Labour Act is superior to the High Court Act in respect of labour matters. Section 2A (3) as read with s 89 (6) of the Act signifies the legislator's intention and purpose to vest exclusive primary jurisdiction over labour matters in the Labour Court. Section 2A (3) provides that the Act shall prevail over any other enactment inconsistent with it, s 89 (6) goes on to clothe the Labour Court with exclusive original jurisdiction in labour matters.

29. To drive the point home, counsel relied on the case of *TN Harlequuin Luxaie Limited* v *Mberikunashe Masvimbo & 14 Ors* SCB 84/22 which affirmed that the Labour Court has exclusive jurisdiction in all labour matters save those expressly excluded by the Labour Act.

30. As regards Mr. Sithole's reliance on the case of *Styllianou & Others* (*supra*), which held that the Labour Court has no jurisdiction to issue declaratory orders, Mr Runganga countered that subsequent jurisprudence emanating from the same Supreme Court has since clarified the position at law, which in effect constitutes a departure from the previous position taken by the court.

31. In answer to the vintage cases relied upon by counsel for the appellant cited in para 21 and elsewhere in this judgment, counsel for the respondent contended that they constitute old precedent which predates the current Constitution and judicial precedents. They were therefore no longer applicable.

32. In conclusion Mr Runganga stressed the need for the courts to abide by the legislative spirit and purpose as espoused in s 2A (1) of the Act. The purpose of the Act is to advance social

justice and democracy at the workplace by securing the just, effective and expeditious resolution of labour disputes.

33. It was his contention that a Labour Court that cannot issue declaratory orders which are a necessary ingredient of its function is severely handicapped. The court *a quo* was therefore correct in registering the declaratory order appealed against. He thus prayed for the dismissal of the appeal with costs at the higher scale.

34. The Court notes with satisfaction and gratitude, for the polished performance of both counsel in their supplementary heads of argument and *viva voce* submissions. It is however regrettable that such able legal minds had to be prodded by the court to put on their thinking caps to discharge their duties effectively as they have just done. That is however, not to detract from the fact that the court has derived the much needed assistance and benefit in resolving this rather tenacious intractable legal controversy as to whether the Labour Court and Labour Officers have jurisdiction to issue declaratory orders. We now turn to determine the controversy from an informed position.

ROLE OF THE HIGH COURT WHEN REGISTERING LABOUR COURT AND TRIBUNALS ORDERS FOR ENFORCEMENT.

35. Before delving into the merits of the appeal there is need to dissect and understand the role and function of the High Court when enforcing Labour Court and related tribunals' orders. The Court will then go on to define the term declaratory order before ultimately resolving whether or not the Labour Court has the necessary jurisdiction to issue declaratory orders.

36. As a general rule, when registering Labour Court and related tribunals' orders, the High Court does not have the jurisdiction to enquire into the merits or demerits of the order or award. In *Augur Investments & Anor* v *Fairclot Investments &* Ors SC 93/23 at p16 the Court had this to say:

> "Registration is a vehicle through which parties may access the services of the Sheriff to execute arbitral awards. It is a procedure designed solely for purposes of execution. In that regard, the court *a quo* does not enquire into or determine the merits of the matter as it is a mere vehicle for enforcement."

37. The same sentiments were echoed by CHIWESHE JP as he then was in *Olympio & Ors* v *Shomet Industrial Development* HH 191/12 at pp 1-2 where the learned Judge President as he then was, observed that:

> "The purpose of registration is merely to facilitate the enforcement of such an order through the mechanism availed to the High Court or the Magistrates Court, namely the office of the Deputy Sheriff or the Messenger of Court, respectively… In an application such as the present one, this Court is not required to look at the merits of the award. All that is required of this Court is that it must satisfy itself that the award was granted by a competent arbitrator, that the award sounds in money, that the award is still extant and has not been set aside on review or appeal and that the litigants are the parties, the subject of the arbitral award. There must also be a certificate given under the hand of the arbitrator"

38. In *Biltrans Services (Pvt) Ltd* v *Minister of Public service & Ors* 2016 (2) ZLR 306 (CC) at p 11 MALABA DCJ (as he then was) , was at pains to simplify and tabulate the essential elements for a valid registration as follows:

> "1. The award must have been granted by a competent arbitrator.
> 2. The award must sound in money.
> 3. The award is still extant and has not been set aside on review or appeal.
> 4. The litigants are the parties to the appeal.
> 5. The award must be certified as an award of the arbitrator."

39. Undoubtedly the respondent, on the face of it, satisfied all the essential elements for registration of the award. The appellant however seeks to impugn the registration on the basis that it offends the public policy of Zimbabwe in that both the Labour Court and the inferior tribunal before it delivered declaratory relief without jurisdiction.

40. On the strength of the trite precedent emanating from the Superior Courts of this country, we find that the court *a quo* had no appellate or review jurisdiction to enquire into the

correctness or otherwise of the declaratory order placed before it for registration for the sole purpose of facilitating enforcement.

41. Accordingly, there can be no merit in the objection against registration of the Labour Court order on the basis that it was wrong. The court *a quo* was therefore correct in refraining from determining the correctness or otherwise of the judgment of the Labour Court before deciding to register it as a court order.

DEFINITION OF A DECLARATORY ORDER

42. The dispute at hand has to do with the competing jurisdiction of the Labour Court and the High Court to hear and determine declaratory orders. To put the matter into its correct perspective, it is imperative to define the term "declaratory order". The learned authors Herbstein & Van Winsen, in their text, *The Civil Practice of the High Courts of South Africa*, 5 Ed, p 1428, define a declaratory order as:

> "An order by which a dispute over the existence of some legal right or obligation is resolved. The right or obligation can be existing, prospective or contingent and no specific consequent relief need be claimed."

43. In U-*Freight Euromar (Private) Limited* v *Emmanuel Mutebuka* HH 05/03 MAKARAU J (as she then was at p 3 held that:

> "Firstly, a declaratory order by its nature is binding on both parties to the litigation as it merely defines the legal position within which the parties exercise their rights"

44. What this means is that a declaratory order is simply an order which resolves a dispute over the existence or otherwise of a legal right or obligation. Its purpose is mainly to provide clarity and certainty with regard to the rights and obligations of parties to a dispute. There is therefore nothing special distinguishing a declaratory order from any other order granted by the courts and tribunals.

THE LAW

45. (i) Section 89 (1) (a) of the Labour Act establishes the Labour Court and confers upon it exclusive jurisdiction over all matters prescribed under the Act: It reads:

> "**Functions, powers and jurisdiction of Labour Court**
> The labour Court shall exercise the following functions:-
>
> (a) Hearing and determining **applications and appeals** in terms of this Act or any other enactment; …" (the emphasis is mine)

(ii) Section 89 (6) confers jurisdiction on the Labour Court in the following terms:

> "The Labour Court shall exercise such functions as may be conferred or imposed upon it by this Act or any other enactment."

(iii) Section 93 (1) expressly confers jurisdiction on labour officers to determine disputes of unfair labour practices upon reference or whenever it comes to their attention. It reads:

> "**93 Powers of Labour Officer**
>
> (1) **A labour officer to whom a dispute or unfair labour practice has been referred, or to whose attention it has come, shall attempt to settle it through conciliation, or if agreed by the parties, by reference to arbitration…**" (The emphasis is mine)

(iv) Section 2A provides for the supremacy of the Labour Act over other statutes as follows:

> "**This Act shall prevail over any other enactment inconsistent with it**." (The emphasis is mine)

UNPACKING THE CONFLICTING JUDGMENTS.

46. The problem with conflicting judgments emanating from the Supreme Court is that it is the court of last resort outside constitutional matters. Its judgments in this respect are final and not appealable. The conflicting judgments form binding precedent on lower courts, thereby creating a crisis of choice as to which decision to follow. There is however solace

in s 26 (2) of the Supreme Court Act which provides that the Supreme Court is not bound by its own judgments. This provision frees the Court from being shackled by its earlier decisions which may have been wrongly decided, become obsolete or untenable with the passage of time.

47. Where lower courts are confronted with conflicting binding precedent from the Supreme Court, we hasten to say, they have a discretion to choose which precedent to follow. In circumstances where the Supreme Court is confronted by its own conflicting judgments it has the discretion of following the precedent it considers correct or to disregard both precedents and create its own new precedent. The court may with extreme caution decide to employ the *per incuriam* doctrine, to depart from its own precedent on the basis that it is wrong or was made in error. See *Morelle Ltd* v *Wakeling* (1955) 2 OB 379, cited with approval in *Old Mutual Property Investments Corporation (Pvt) Ltd* v *Muvuti Investments (Pvt) Ltd* HH 439/24. There is also wisdom in giving special consideration to later precedent as it tends to represent the current position of the law and prevailing circumstances with hind sight. Generally speaking, the later precedent is deemed to have overtaken the earlier precedent.

48. In all circumstances, there is need to give credence to the *stare decisis* rule which behooves the courts to follow laid down precedent unless there is good and sufficient reason to depart from the same.

ANALYSIS AND DETERMINATION

49. The modern approach adopted by this Court in recent times, accords with sound statutory interpretation which achieves the legislator's purpose for creating the Labour Court and related tribunals. In *TN Harlequin Luxaire Limited*, *supra*, Hlatshawayo JA, as he then was graphically gave expression to the modern *ratio decidenti* for upholing the exclusive

jurisdiction of the labour court in respect of labour related ,declaratory orders when he observed at para 21 of the judgment that:

> "One of the pillars of those opinions which championed the overall and original jurisdiction of the High Court in all matters was that only the High Court has jurisdiction to issue a declaratory order, per s 14 of the High Court Act. However, in my view, this was an incorrect understanding of the nature of the remedy of a declaratory order. While s 14 of the High Court Act captures this remedy in its broadest and classical form as a "gentle order" which may be issued with or without any consequential relief, there is absolutely no doubt in my mind that the Labour Court in its daily operations does also routinely issue declaratory orders, holding, for example, that an employee has been wrongfully dismissed or certain actions constitute unfair labour practices and then proceeding to grant consequential relief. I make this point to emphasize that even in the absence of the *Nhari v Mugabe (supra)* matter, the view of this Court would have been to uphold the Labour Court's exclusive jurisdiction in employment and labour matters. More so, because it would have taken very clear and explicit provisions in the new Constitution to oust a legal regime so firmly established and solidified before its enactment."

50. The Labour Court is a specialised court created specifically to determine disputes arising from labour relations. Its establishment reflects legislative recognition that labour disputes require specialised adjudication informed by labour principles, workplace realities, and the statutory mechanisms created under the Labour Act as determined by this Court in the *Stanley Nhari* v *Robert Gabriel Mugabe* case, *supra.*

51. To permit litigants to approach the High Court for declaratory relief in labour disputes would defeat the purpose of creating exclusive specialist labour institutions. It would encourage forum shopping, produce conflicting jurisprudence, and undermine the coherent administration of labour justice.

52. The contemporary dicta in *TN Harlequin Luxaire Limited and Stanley Nhari, supra,* signify that the argument that the Labour Court lacks jurisdiction because it possesses no inherent powers is no longer sustainable. A declaratory order is not a distinct cause of action but merely a remedy. The definition of a declarator as a judicial remedy fits

squarely into the purpose for which the law giver created the Labour Court and related tribunals. Once a court or tribunal possesses jurisdiction over the subject matter of a dispute, it necessarily possesses jurisdiction to grant appropriate remedies incidental to the effective exercise of that jurisdiction, including declaratory relief. Section 89 (1) (a) of the Act confers on the labour Court the jurisdiction to hear and determine all labour related applications and appeals without exception. Section 93 confers on labour officers the jurisdiction to preside over unfair labour disputes and to issue remedies in the form of declaratory relief.

53. The supremacy clause in s 2A of the Labour Act is decisive as determined by this court in *City of Gweru* v *Masinire* 2019 (2) ZLR 461. Where the High Court Act appears to confer jurisdiction upon the High Court in a manner inconsistent with the exclusive labour dispute-resolution framework established under the Labour Act, the latter prevails. It appears that there was an oversight of the consideration of the supremacy of the Labour Act over the High Court Act in all the judgments which held that the Labour Court and related tribunals have no jurisdiction to issue declaratory orders. Had the Supreme Court's attention been drawn to the provisions of s 2A of the Act, we have no doubt that the determination in those cases would have been in line with the current position where the Court's attention was drawn to s 2A.

54. As we have already seen, s 89 of the Act confers exclusive jurisdiction on the Labour Court on labour matters in the first instance. Accordingly, where a dispute arises purely from an employment relationship and concerns rights, obligations, or remedies created by labour legislation, jurisdiction vests exclusively in the Labour Court and labour tribunals established under the Labour Act for the purpose.

55. The High Court and other tribunals exercising jurisdiction outside the Labour Act .may retain jurisdiction only where the matter transcends labour law and implicates independent constitutional, administrative, or civil causes of action falling outside the specialised labour framework.

DISPOSITION

56. In the result, this Court makes the following findings:

    1. The Labour Court and labour-related tribunals established under the Labour Act possess jurisdiction to issue declaratory orders in matters arising purely from labour disputes under the Labour Act.
    2. By virtue of s 2A of the Labour Act, the Labour Act prevails over inconsistent provisions of the High Court Act.
    3. The High Court lacks jurisdiction to issue declaratory orders in disputes that fall exclusively within the ambit of labour law in terms of the Labour Act.
    4. Litigants may not circumvent the exclusive jurisdiction of labour fora by framing labour disputes as applications for declaratory relief before the High Court.
    5. By creating the Labour Court and related tribunals, the legislator intended to create a one stop shop for all labour and employment disputes.
    6. That the court *a quo* did not err or misdirect itself at all in dismissing the appellant's objection to registration on the basis that the registration does not offend Zimbabwe public policy. This is because, both the labour officer and the Labour Court had the necessary jurisdiction to issue the labour related declaratory order.

ORDER

57. Accordingly, we find that there is no merit in this appeal, it is ordered as follows:

"The appeal be and is hereby dismissed with costs."

MAVANGIRA JA : I agree

MUSAKWA JA : I agree

Tabana & Marwa Legal Practitioners, appellant's legal practitioners.

Mbano Gasva & Partners, 1st respondent's legal practitioners.